

ORIGINAL

(S E R V E D)
(APRIL 13, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

April 13, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**ADJOURNMENT OF HEARING AFTER MAY 13, 1993, CANCELED;
CERTIFIED RECORD**

On March 31, 1993, the location of the hearing to commence at 9:30 a.m. (Local Time) on April 27, 1993, was indicated -- Department 8, Third Floor, City Hall, 400 Van Ness Avenue, San Francisco, CA. It was also stated that the hearing would adjourn after May 13, 1993, to be reconvened at a mutually satisfactory time and place. Since then, by letter dated April 7, 1993, the parties have furnished an estimate that hearing on the direct cases should take approximately seven to eight weeks (i.e., approximately 35 to 40 days of actual hearing time). This is the amount of time they estimate will be required for

cross-examination of the designated witnesses who have submitted written direct testimony and for direct examination of hostile witnesses. In the circumstances, the planned adjournment after May 13, 1993, is canceled. The parties should be prepared to have the designated witnesses available beginning April 27. The hearing will be conducted on a run-through basis until the completion of cross-examination of the designated witnesses. In view of the planned length of the hearing the parties should make every effort to have witnesses available successively without lengthy lapses of time.

The parties are also reminded that on April 15, 1993, the required proposed certified index is due and it should contain an orderly list containing the identity of each witness scheduled for cross-examination, the date or dates of his or her direct testimony, the date, title and number of each exhibit, and a list of the errata or substitute pages thereto.

In view of the vast number of errata, each party should send a representative to the Commission (Docket Activity Branch, Office of the Secretary) to make the appropriate changes and/or verify same on the official record in order to make sure of its accuracy and to alleviate the burden on the Commission's staff.


Frederick M. Dolan, Jr.
Administrative Law Judge